4943

Executive Order

The Consular Regulations are hereby amended as follows:
The Introduction to the Regulations is amended to read:

ORIGIN OF CONSULAR JURISDICTION

Early in the history of commerce it became necessary for commercial States to establish a jurisdiction over seamen, vessels, and merchandise. And as the operations of commerce in foreign ports might involve national interests, as well as the individual interests of merchants and seamen, it became equally necessary that this jurisdiction should be exercised by a national agent. Hence we find among the commercial States of antiquity commercial magistrates with functions similar to those vested in the consuls of modern times, though much more extensive.

When the title of 'Consul' ceased to distinguish the executive magistrate of Rome, and after having been borne by some of the emperors (at Rome and Byzants) as well as some of the kings and princes of the West, it was conferred upon counts and lords acting as judges and law administrators, notably upon governors of the city-states of Italy, France and Spain and particularly upon such municipal magistrates as were charged with the control of trade and navigation. These "consuls de mer" or "consuls des marchands", who appear to have been elected in Pisa, Amalfi, Messina and other Mediterranean marts during the eleventh and twelfth centuries for the purpose of adjudicating commercial and maritime disputes may be described, it is thought, as domestic officials especially entrusted with the enforcement of the laws of the sea in accordance with international codes then in the process of development. Their functions, however, foreshadowed the creation of a foreign service which in time ensued. A further approach towards the foundation of the later consular institution, as now understood, was the custom under which some nations allowed merchants going abroad on a trading expedition or organizing and launching such an enterprise to select among themselves a consul (consul de navire) who would manage the cruise and settle all controversies on board ship or in the foreign ports until the termination of the voyage. By the beginning of the twelfth century international commerce had developed sufficiently to require the protecting and restraining arm of official representatives of the several nations respectively residing in colonies established in foreign lands. The first consuls à l'étranger are believed to have originated with the Italian city republics simultaneously with the earlier Crusades.

During the Middle Ages consuls were quasi public ministers, who watched over the interests of their countrymen, deciding their disputes, protecting their commerce, and exercising large judicial and commercial powers, independent of the local law.[1] But when public ministers, in name and in fact, came to be established, consuls (except in oriental countries, where their powers are dependent upon treaty, as we shall nereafter see) were shorn of much of their dignity and privileges. They are now, for the most part, commercial agents, and have no representative character. Both in civil and criminal cases they are subject to the laws of the countries in which they reside equally with all other persons. If exceptional privileges are claimed, it must be by virtue of treaty stipulations, local customs, or local law. Any judicial powers which may be vested in the consuls accredited to any particular country must be ascertained by an examination of the treaty stipulations with such country and the laws of the State from which the consuls derive their appointment.[2]

Paragraph 26 is established as follows:

26. *Neglect of duty or misconduct.*—Whenever any consular officer willfully neglects or omits to perform seasonably any duty imposed upon him by law, or by any order or instruction made or given in pursuance of law, or is guilty of any willful malfeasance or abuse of power, or of any corrupt conduct in his office, he shall be liable to all persons injured by any such neglect, or omission, malfeasance, abuse, or corrupt conduct, for all damages occasioned thereby; and for all such damages, he and his sureties upon his official bond shall be responsible thereon to the full amount of the penalty thereof, to be sued in the name of the United States for the

[1] Pomeroy's International Law.
[2] Dainese v. Hale, 91 U. S. Rep., 13.

use of the person injured. Such suit, however, shall in no case prejudice, but shall be held in entire subordination to the interests, claims, and demands of the United States, as against any officer, under such bond, for every willful act of malfeasance or corrupt conduct in his office.—(*R. S. 1735; U. S. C. Title 22, sec. 103*).

Paragraph 118 is amended to read as follows:

118. *With whom direct correspondence is permitted.*—As exceptions to the general rule stated in paragraph 114, a consular officer may correspond directly on public matters with the following:

1. American officials stationed or temporarily residing in foreign countries, and officials of insular possessions of the United States.

2. The Comptroller General of the United States, on matters pertaining to accounts only, *the correspondence to be invariably forwarded through the Department.*

3. Collectors of customs and appraisers, on matters relating to invoices and prices current.

4. Immigration inspectors, on urgent immigration matters.

5. The Commissioner of Pensions, on routine pension matters.

6. United States despatch agents.

7. Officials of the Treasury Department charged with the prevention of smuggling, on urgent matters involving attempts to smuggle merchandise into the United States.

8. United States Attorneys, on urgent cases in connection with pending trials.

9. The Director of the Veterans' Bureau on routine matters relating to Bureau activities (except telegrams, which must be transmitted through the Department of State).

Paragraphs 255, 256, 257 and 258 are canceled and the following substituted:

225. *Duty of consular officer, in case of death of seaman.* (a) *Seamen who die on board ship.* When any seaman or apprentice belonging to or sent home on any merchant vessel employed on a voyage which is to terminate in the United States dies during such voyage, the master should take charge of all monies, clothes, and effects which he leaves on board; and if the ship touches or remains at a foreign port before coming to any port of the United States, it is his duty to report the case to the consular officer there, and to give such officer any information he requires as to the destination of the ship and the length of the voyage. Thereupon such officer may, if he considers it expedient to do so, require the said effects, money, and wages to be delivered and paid to him, and upon that being done he shall give the master a receipt therefor. (Form No. 85.) The consular officer shall also indorse and certify upon the agreement with the crew the particulars of such delivery and payment. In case he does not require the delivery and payment, it is his duty to obtain from the master a statement of the seaman's account with the vessel and transmit a copy thereof to the Department of State. If the ship is sold in a foreign port and the master has in his hands the effects, money, and wages of a deceased seaman, the consular officer may require them to be delivered to him.—*R. S., 4538, 4539, 4541; U. S. C. Title 46, secs. 621, 622, 624.*

(b) *Seamen who die on shore abroad.* Whenever any such seaman or apprentice dies at any place outside of the United States, leaving any money or effects not on board his vessel, the consular officer of the United States at or nearest the place shall claim or take charge of such money and effects.—*R. S. 4541; U. S. C. Title 46, sec. 624.*

256. *Disposition of effects by consular officer.* (a) *Effects may be sold.*—The consular officer shall, if he thinks fit, sell all or any of such effects or any effects of any seaman or apprentice as may be delivered to him or otherwise come into his hands under the provisions of the law.—*R. S., 4541; U. S. C. Title 46, sec. 624.*

(b) *Proceeds of sale, effects and other monies to be sent to district court.*—In the event such effects are sold the consul shall quarterly remit to the district court for the district embracing the port from which such vessel sailed, or the port where the voyage terminates, all monies belonging to or arising from the sale of the effects or paid as the wages of any deceased seaman or apprentice which have come into his hands (Form No. 86) and shall render such accounts thereof as the district court requires.—*R. S., 4541; U. S. C. Title 46, sec. 624.*

The effects of deceased seamen or apprentices not sold and all wages or monies coming into the possession of a consular officer under any of the foregoing provisions shall likewise be remitted to the district court for its administration. Funds should preferably be transmitted by bank draft or check and effects should be forwarded by the safest and most expeditious means available under the seal of the consulate, every practicable effort being taken to insure their safe arrival.

257. *Correspondence and accounting.* (a) *Report of death.*—The death of an American seaman should be reported to the Department promptly when knowledge

thereof reaches the consular officer. If the seaman was an American citizen, Form No. 192, Report of Death of American Citizen, should be submitted to the Department with a covering despatch, in triplicate, for official use. In case the consular officer is relying upon the Department to communicate the intelligence of the death to persons privately interested, a sufficient number of extra copies of the despatch and report should be provided for the purpose.

The consular officer will when practicable communicate intelligence of the seaman's death to the next of kin, or other interested persons, sending all available and proper information, including the form report, and noting his action appropriately on the form report submitted to the Department.

In submitting reports on the death of seamen who are not American citizens, Form No. 192 should obviously not be used, but the information called for should be ascertained in all cases and should be forwarded in the form of despatches.

(b) *Accounting to district court.*—Consular officers are required, in rendering the accounts provided for by law, to make a statement of details, such as is required of the master of the vessel by sections 4538–4539 of the Revised Statutes (*U. S. C. Title 46, secs. 621, 622*), namely: (1) A statement of the amount of money left by the deceased and any of his effects unsold; (2) a description of each article sold, and the sum received for each; (3) the sum due the deceased for wages, with dates, and the items of deduction, if any, to be made therefrom—no such deductions being allowed to the master unless verified by an entry in the official log book, if there be any.

They are directed also to require the master to give full particulars of the wages account of the seaman, including the date of shipment, rate of wages, and time of discharge, and of any deductions therefrom, to be verified by the entry in the official log; such account to be verified before the consul by the master, and a certified copy thereof to be sent with the account to the district court.

(c) *Report of accounting for Department.*—Consuls will send a copy of the accounts submitted to the court to the Department of State for its information. When the case is immediately disposed of, this enclosure may accompany the report of death, but it should always be forwarded with a covering despatch. When from the nature of the correspondence it is evident that the Department will require additional copies for transmission to interested divisions of the Government or to private persons, extra copies in appropriate number should be provided.

(d) *Correspondence regarding effects with next of kin or claimants to the estate.*—Consuls will correspond direct with relatives or other connections of deceased seamen, informing them of the location of the district court to which the wages and effects are to be or have been transmitted, the date and manner of shipment, and the approximate date of arrival, and advising them that for further information in regard thereto correspondence may be had direct with the court. The Department as well as the district court should be informed when this action is taken.

In the event that names and addresses of relatives or other interested persons can not be ascertained, the consul will so inform the district court and the Department.

258. *Effects of Foreign seamen.* If the deceased seaman was a foreigner and was shipped in a foreign port, and the wages and effects are delivered to the consular officer, the latter should make proper inquiries to find the relatives of the deceased and may determine for himself to whom the wages and effects should be given. If no relatives are found or the officer can not satisfactorily determine the relatives entitled to the wages and money arising from the sale of the effects they should be remitted to the district court as above provided for.

Paragraph 290 is canceled and the following substituted:

290. *Transportation of Shipwrecked Seamen.*—When American seamen, whether transported from a port or place where there is no consular officer or picked up at sea, are landed at a consulate of the United States, the consular officer is authorized to pay the master of the vessel in which they are transported a reasonable compensation for the service, not exceeding 60 cents per day for each seaman, and to include the same in his account for relief of seamen, forwarding a proper voucher therewith and furnishing satisfactory explanations as to the case. The names of the seamen and the names of the vessels to which they last belonged must be given, and also the number of days occupied in their transportation. (Form No. 84). When consular officers are convinced that the payments authorized by this paragraph do not compensate the rescuing vessel for the actual losses sustained in making the rescue, they may forward to the Secretary of State an itemized claim for the amount of such actual losses, submitted by the master of the vessel on Standard Voucher Form No. 1034; such claims must be accompanied by a report from the appropriate consular officer stating his recommendations regarding payment, and if accorded

the administrative approval of the Secretary of State, will be submitted to the Comptroller General of the United States for consideration under the provisions of the Act of April 10, 1928, Public—No. 247 (45, Stat. L.,).

Paragraphs 437 and 438 are canceled and the following substituted:

437. *Correspondence with the central governments of foreign countries*—Consular officers ordinarily have no diplomatic position, and must not assume such unless specially instructed by the Department of State, or unless they are regularly presented in that capacity by a diplomatic representative of the United States on his leaving his post. They therefore can not ordinarily correspond directly with the government of the country in which they reside.

In absence of diplomatic representative.—In the absence, however, of a diplomatic representative, cases may arise in which a consul may be required to correspond directly with the government. All such correspondence, as well as all correspondence with the local authorities and with their colleagues, should be conducted in a courteous and dignified manner.

Paragraph 438 is established as follows:

438. *Social relations.*—Consular officers will endeavor to cultivate friendly social relations with the community in which they reside, and will refrain from expressing harsh or disagreeable opinions upon the local, political, or other questions which divide the community within their jurisdiction. They are forbidden to participate in any manner in the political concerns of the country. In their despatches upon such subjects they will confine themselves to the communication of important or interesting public events as they occur, avoiding all unnecessary reflections upon the character or conduct of individuals or governments.

Paragraph 439 is canceled and the following substituted:

439. *Political Reports.* Consular officers should at all times bear in mind their responsibility in the matter of political reporting. Although certain offices have very great importance and others less, as sources of political information, all officers should nevertheless watch the course of events in their districts with a view to reporting all information of a political nature likely to be of value. Political reports should be limited in length and number to the requirements of the situation at each post; they should be concise; and, in so far as conditions permit, authoritative. Under current instructions, in some instances, such reports are made to the mission or higher consular office; in others, to the Department.

In Paragraph 443 whenever the words "Secretary of the Interior" occur the words "Secretary of Commerce" are substituted.

Paragraph 451 is canceled and the following two Paragraphs substituted:

451. *Presents and testimonials.*—Consular officers are forbidden by law to ask or accept, for themselves or any other persons, any present, emolument, pecuniary favor, office, or title of any kind from any foreign government. This statute is substantially the provision of the Constitution in this respect. If consular officers are tendered presents, orders, or other testimonials in acknowledgment of services rendered to the citizens or the governments of foreign states, they may apply to Congress through the Department of State for permission to accept the same.—*U. S. Const., Art. I, Sec. 9, cl. 8; U. S. C. title 22, sec. 126.*

451½.—*Appointment as fiduciary.*—No consular officer shall accept an appointment to office from any foreign State as administrator, guardian, or in any other fiduciary capacity for the settlement or conservation of the estates of deceased persons or of their heirs or of other persons under legal disabilities without having been previously authorized by the Secretary of State so to do.—*E. O. Mar. 24, 1902.*

Paragraph 458 is hereby established as follows:

458. *Catastrophes.*—Whenever any great catastrophe (such as the sinking of a steamer or an earthquake) happens abroad, consular officers are instructed to inform the Department immediately of the names of any Americans who have been killed or injured, and also of the names of any who have been saved, or who are in the neighborhood and who are known to be safe.

Paragraph 465 is canceled.

Paragraph 469 is amended to read as follows:

469. *Applications for leave of absence.*—Every application for leave of absence must contain a statement of the number of days the consul has been absent from his post during the previous calendar year, referring by number and date to the instruction granting such leave. Every such application must state specifically whether the applicant wishes to come to the United States. (Paragraph 467).

Leaves of absence are not cumulative. In case of leave not being asked or granted in any one calendar year, the term for which such leave might have been granted can not be added to the leave of a subsequent year.

Paragraph 473 is amended to read as follows:

473. *Leave of absence of clerks.*—A clerk in a consular office may, in the discretion of the principal officer, if the work of the office permits, be granted leave with pay to the extent and in the manner provided for consular officers. In granting leave to clerks and subordinate employees principal officers will bear in mind that leave must not be granted when the absence of the clerk will interfere with the transaction of the business of the office and that the absences of members of the staff preferably should be so arranged that the work can be carried on without additional assistance. Consular officers in charge of posts will endeavor, so far as may be consistent with the proper transaction of the business of their offices, to grant all or part of the leave specified, in order that clerks and employees may have reasonable opportunity for rest and recreation.

Paragraph 476 is hereby established as follows:

476. *Publications of interest to Government institutions.*—Consular officers should uniformly endeavor to obtain publications whether of a scientific, historical, economic or commercial nature issued in their districts, by any and all governmental or private institutions, which may be of interest to any branch of the American Government or private American interests. When such a publication can not be obtained free of charge, and when it may appear to be of sufficient importance, the institution likely to be interested may be informed of the availability and cost of the publication.

Consular officers should also forward for the Department of State or for such institutions, Government or private, as have been mentioned, such copies of national or local laws, rules, regulations, orders, decrees, et cetera, as it is thought may be of interest in the United States.

Paragraph 477 is established as follows:

477.—*Consular officers to act for Veterans' Bureau.* The Director of the United States Veterans' Bureau is authorized, at the direction of the President, or with the approval of the head of the Department concerned, to utilize, in addition to the facilities of the Bureau, such other governmental facilities as may be made available to provide for the proper examination, medical care, treatment, hospitalization, dispensary, and convalescent care, necessary and reasonable after care, welfare of, nursing, vocational training, and such other services as may be necessary for carrying out these purposes, for the performance of which the said Director is made responsible by statute, subject to the general directions of the President.—*43 Stat. L. 610; U. S. C. title 38, Sec. 434.* Consular officers of the United States will therefore promptly and carefully perform any of the above duties delegated to them in their respective districts by instructions issued by or transmitted through the Department of State; they are also charged with the general supervision of Veterans' Bureau activities within their districts and in the absence of special instructions shall promptly submit reports of information received regarding such activities which may assist the Veterans' Bureau to discharge efficiently its responsibility to its beneficiaries who reside in foreign countries.

Paragraph 479 is renumbered to 478.

A new Paragraph, to be numbered 479 is established as follows:

479.—*Legal services for private persons.* Consular officers are frequently asked by their countrymen at home to examine titles, or do other services for them in a foreign land. It is sometimes even assumed that the parties making the requests have a right to such services. Consular officers will treat all such requests courteously, and if they are unable to comply, will state the reasons clearly but unoffensively.

Consular officers are forbidden to enter into agreements with attorneys in their districts respecting the performance of legal services for persons applying to the consulate therefor. In appropriate cases they may furnish applicants with the names of such local attorneys as they believe to be trustworthy and capable of rendering the legal services the applicant has in view. Lists of this kind should be arranged alphabetically.

When persons residing or travelling in a consular district desire to have the name of an attorney in the United States, the consular officer may refer them to such lists of attorneys as are at his disposal, but may not make recommendations as to particular attorneys.

Paragraph 480 is established as follows:

480.—*When legal process may not be served.* There is no authorization in the Consular Regulations nor is there any item in the Tariff of United States Consular Fees requiring consular officers or employees to serve legal process such as subpoenas, citations, and complaints, in connection with questions pending in Federal and State courts in the United States. An exception is made only for the service of certain

process issuing out of Federal courts at the desire of the Attorney General or Assistant or District Attorneys acting under him.

Consular officers are expected to make prompt and courteous responses to all inquiries relating to the serving of process or documents of that nature, and they should make such suggestions as they properly can to assist interested persons. They may properly give a list of names of several reputable attorneys or other persons who are in a position to perform the required service, with the statement that they can not assume responsibility for the ability or integrity of anyone who may be selected as the result of information furnished by them. Affidavits showing performance by other persons of such a service as that herein referred to may, of course, be made before the consular officer, fee No. 31 of the Tariff of United States Consular Fees being charged. Consular officers may also, under item 38, certify to the official character of any foreign notary or other official in connection with the performance of such service.

481. *When legal process may be served.—Fraudulent Naturalization.* In connection with cases before United States courts relating to fraudulent naturalization, attention is directed to Section 15, Paragraph 2, of the Naturalization Act of June 29, 1906, (U. S. C. title 8, sec. 405) by which consular officers are required to render assistance in the cancellation of certificates of naturalization fraudulently procured. In view of this provision of law consular officers may properly assist in the delivery to designated persons of documents forwarded to them by duly authorized officials of United States courts, and in such cases delivery may be made, where deemed advisable, by a member of the consular staff.

Contempts. An Act approved July 3, 1926, entitled, "An Act Relating to Contempts", provides for the service by American consuls of subpœnas issued by courts of the United States in certain cases where letters rogatory may be issued by such courts for the purpose of taking the testimony of witnesses, citizens of the United States, or domiciled therein but temporarily residing abroad, or whenever the attendance at the trial of any criminal action of a witness, being a citizen of the United States or domiciled therein, and who is beyond the jurisdiction of the United States is desired by the Attorney General, or any assistant or district attorney acting under him.

Paragraph 486 is canceled and the following substituted:

486. *Record of notarial and other services.*—Each notarial act, oath, affidavit, affirmation, deposition, authentication, known as unofficial or personal, whether feed or gratis, shall be completely and truly recorded in the Record of Fees Book, chronologically entered together with all other services, such as certification of invoices, landing certificates, bills of health, etc., and showing the fees charged, collected, or accepted therefor.

Paragraph 488 is amended to read as follows:

488. *Verification of powers to transfer notes and bonds of the United States.*—Powers of attorney for the transfer of any note or bond of the Government of the United States, or for the receipt of interest thereon, shall be executed in a foreign country before an American consular officer or, if executed before a foreign official having power to administer oaths, the signature of such official shall be authenticated by an American consular officer.

Paragraph 521 section (c) is amended to read as follows:

(c) *Oaths, acknowledgments, and certificates of competency of local officials in connection with business with the government.* Consular officers are not permitted to make a charge for administering oaths required to be made by pensioners and their witnesses in executing their vouchers for their pensions (25 Stat. L. 782), or by persons presenting claims for pensions or increase of pensions, or claims for insurance allowances or allotments, in certifying to the competency of a local official before whom said papers were executed, or for other services in relation thereto; or for acknowledgments connected with the assignment or transfer of United States bonds, or of powers of attorney therefor or to collect interest thereon; or for any and all services in connection with the execution of tax returns including federal state, territorial, municipal, and insular returns.

Any services which American consular officers shall be called upon to perform under items 31, 33, 38, 39, 40, 42, and 43 of the Tariff of the United States Consular Fees, for the use of any person in the collection of claims from the United States, or in connection with any claim or application for service from the United States Veterans' Bureau, or from any State for compensation, pensions, back pay, bounty, bonus, or for property loss in the service of the United States shall be rendered free of charge.

In Paragraph 533, Tariff of Fees, the following amendments and additions are made:

Items 1, 3, 5 and 6 to read as follows, in accordance with the Executive Order of March 17, 1927, No. 4615:

1. Certification of invoice in such number of copies as will meet the requirements of the regulations and instructions and provide the shipper with one copy (in addition to duplicate) for his own use, including any additional declaration or certificate not otherwise provided for which is required by law or regulations for use in connection with the entry of the wares or the forwarding of the same in bond $2.50

3. Certificates and declarations as above described, when issued for a shipment not covered by a consular invoice, including declaration of foreign shipper of articles exported for exhibition and returned (Form 204) and immigrant's oath regarding teams and vehicles (Form 128), but excluding certificate for food and drug products of insecticides (Forms 197 and 217) 1.00

5. Certificate of disinfection in such number of copies as will meet the requirements of the regulations and instructions and provide the shipper with one copy for his own use 2.50

6. Discontinued.

Item 35 to read as follows:

35. Acknowledgments and authentications connected with the assignment or transfer of United States bonds or of powers of attorney therefor or to collect interest thereon ..... No fee

Item 41 is established as follows:

41. For certifying to the correctness of a copy of, or extract from, any document, official or private 2.00

Each copy certified is to be considered an original, and a fee charged for the certification.

Item 42, explanatory text, to read as follows, in accordance with the Executive Order of August 8, 1927, No. 4701:

42. In connection with any service rendered outside of the consular office at the request of private individuals, the exact amount of the expenses actually and necessarily incurred by the person rendering the service shall be collected from the persons for whom the service is performed in addition to the fee or fees prescribed therefor, but no amount in excess of the fee or fees prescribed and such actual and necessary expenses shall be charged or accepted.

Item 45 to read as follows:

45. Any and all services in connection with the execution of tax returns, federal, state, territorial, municipal and insular ..... No fee

Item 51 to read as follows:

51. Any and all services performed for American citizens while outside the United States in preparation of ballots to be used in any primary, general, or other public elections in the United States, its territories, or possessions, whether Federal, state, territorial, county, town, or municipal ..... No fee

The note to the Tariff of Fees concerning the services to be rendered free of charge is amended to read as follows:

Services performed under the foregoing tariff shall be rendered free of charge when performed: (a) in connection with the settlement of the estate of any employee of the United States dying abroad while on official duty; (b) for the use of any person in the collection of claims from the United States or from any State for compensation, pensions, back pay, bounty, bonus, property loss in the service of the United States; (c) for obtaining the return of property held by the Alien Property Custodian; for (d) the official use of the United States Veterans' Bureau.

Paragraph 538 is canceled.

Paragraph 540 is amended by striking out the words "and when the value quoted in the Secretary of the Treasury's quarterly proclamation of the value of foreign coins is not used in the reduction of the payments to the currency of the United States" and the words "or the standard money of the country in which the transaction occurred."

Paragraph 547 is amended to read as follows:

547. *Clerk hire.*—The account for allowance for clerks in a consular office is to be transmitted by the officer in charge to the Department of State accompanying his account current at the end of each quarter or period to which it relates. It must

be accompanied by the receipt of each person employed as clerk, certified by the officer.

Whoever, being charged with the payment of any appropriation made by Congress, pays to any clerk or other employee of the United States a sum less than that provided by law, and requires such employee to receipt or give a voucher for an amount greater than that actually paid to and received by him, is guilty of embezzlement, and shall be fined in double the amount so withheld from any employee of the Government and imprisoned not more than two years.—*35 Stat. L. 1105 (U. S. C. title 18, sec. 172).*

Other sections of the Criminal Code prohibit under penalty of fine and imprisonment the fraudulent execution, possession, transmission, or submission to the Government of the United States, or to any officer thereof, of any false document for the purpose of defrauding the United States.—*35 Stat. L. 1094, 1095; U. S. Code, title 18, secs. 72–75.*

Paragraphs 552, 553 and 554, are amended to read as follows:

552. *Accounts relating to seamen.*—The returns to be made under this general account are: (1) Schedule of disbursements, relief of seamen (Form No. 94), accompanied by a statement of relief of seamen (Form No. 94a); (2) Detailed list of seamen discharged, shipped, deserted and deceased (Form No. 124). These returns are to be rendered quarterly to the Department of States or whenever the consul in charge renders accounts provided there are transactions to report. Attention is directed to Article XV herein for information as to the items to be embraced in the account for the relief of seamen and the vouchers to sustain them. (See also paragraphs 224 and 292.)

553. *Schedule of disbursements and statement of relief of seamen.*—The schedule of disbursements for relief of seamen (Form No. 94) is clearly explained by its title and by the statements and references in Paragraph 552. The form entitled "Statement of Relief of Seamen" (Form No. 94a) is a report concerning each case of seamen's relief, four cases to each sheet, and supplies information needed in the audit of the relief items in the schedule of disbursements; the information called for in the footnote to the form should always be included when applicable to the case and its omission will be regarded as a sufficient reason for the suspension of pertinent disbursements.

554. *Detailed list of seamen discharged, shipped, deserted and deceased.*—This return (Form No. 124) is clearly explained by its title. Consular officers are required by section 7 of the Act of June 26, 1884, to collect all arrears of wages due to seamen at the time of their discharge.—*23 Stat. L. 55: U. S. C. Title 46, Sec. 683.* All amounts of wages which appear in this return as received by consular officers must be covered by the seamen's receipts for wages (Form No. 164, 164a), or by evidence of other lawful disposition thereof.

Paragraph 558 is amended to read as follows:

558. *Salary account and certificate as to absence.*—The salary accounts of Foreign Service officers must be rendered quarterly, except when an officer's detail or assignment is altered by orders or by his going away on leave of absence.

Foreign Service officers are authorized to pay themselves from the fees they may collect as consular officers, if these are sufficient; if not, drafts may be drawn for the deficiency but not in greater amount than is actually due when the draft is drawn.

The officer in charge of a consular post is required to pay the salaries of all subordinate officers, including Foreign Service officers assigned or detailed to the office, and employees, who should receipt therefor, from the fees received at the post, if these are sufficient; if not, drafts may be drawn by the officer in charge to complete the payments.

Each account should be accompanied by a certificate as to absence, signed by the officer rendering the account, showing how many days he has been absent from his post and duty during the quarter or period covered by the account and whether by leave or otherwise, as prescribed on the back of Form 222.

Paragraph 577 is canceled.

Paragraph 604 is amended by striking out, in the section entitled "At inland consulates", the subsection numbered (5) relating to the register of landing certificates.

CALVIN COOLIDGE

THE WHITE HOUSE,
August 2, 1928.

[No. 4943]

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